



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 8, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202207059 (Incident Date: October 11, 2022) regarding Police Officer Jordan Gates-Rollins, Tax No. 966589 (DADS No. 2023-29474)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation against Police Officer Gates-Rollins.

After a review of the facts and circumstances in this matter, the Police Commissioner has determined there is no evidence that Police Officer Gates-Rollins intentionally damaged the complainant's bicycle. Police Officer Gates-Rollins was involved in a motor vehicle accident with the complainant's bicycle, while he was responding to a 911 call regarding a child having difficulty breathing. While it is possible that the complainant's bicycle sustained damage, there is not enough evidence to support the allegation that Police Officer Gates-Rollins intentionally damaged the complainant's bicycle. While entering a driveway, Police Officer Gates-Rollins stated he stopped for a few seconds to let the complainant pass the driveway entrance, which is consistent with the Body Worn Camera footage. Police Officer Gates-Rollins stated he believed he had clearance when he accelerated the vehicle again, however his vehicle collided with the complainant's bicycle. Police Officer Gates-Rollins immediately exited his vehicle to check on the complainant and notify his supervisor. The Body Worn Camera depicts the complainant standing and not visibly injured. After a few minutes, and the crowd encouraging the complainant to go to the hospital, he laid flat on the ground and claimed to be in pain. Thereafter, an ambulance transported the complainant to the hospital. The supervisor on scene prepared a Police Accident Report as required.

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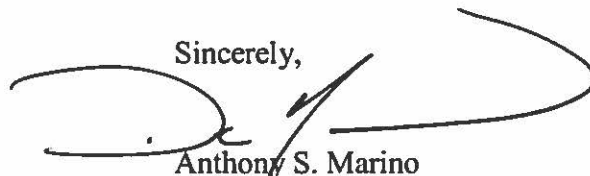
Website: <http://nyc.gov/nypd>

Additionally, a parallel investigation was conducted by the Housing Bureau Investigations Unit, which was closed as unsubstantiated. The Police Commissioner has determined there was no misconduct committed by Police Officer Gates-Rollins in regard to intentionally damaging the complainant's property. Police Officer Gates-Rollins was attempting to respond to a 911 call involving a child having difficulty breathing, and was involved in a minor motor vehicle accident while en route. To issue discipline in this case, would not be in the interest of justice, as it is clear to the Police Commissioner that Police Officer Gates-Rollins did not intend to damage the complainant's bicycle.

While the Police Commissioner, fully acknowledges CCRB's authority to investigate damaged property under the Abuse of Authority doctrine, the Police Commissioner does not find that accidental damage to property falls under that doctrine. Thus, police-involved accidents, are to remain under the purview of the NYPD for investigation purposes.

Therefore, considering the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Police Officer Gates-Rollins for the sole allegation.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', is written over the typed name and title.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office